

“ Most dreaded and gracious Sovereign,

“ It may please your most excellent Majesty to be advertised that this letter, here inclosed, was delivered unto me, your Chief Justice, on Thursday last in the afternoon, by a servant of your Majesty’s Attorney-General ; and letters of like effect were on the day following sent from him by his servants to us, your Majesty’s justices of every the courts at Westminster.

“ We are, and ever will be, with all faithful and true hearts, according to our bounden duties, to serve and obey your Majesty, and think ourselves most happy to spend our times and abilities to do your Majesty true and faithful service, in this present case mentioned in this letter.

“ What information hath been made out unto you, whereon your Attorney doth ground his letter, from the report of the Bishop of Winchester, we know not ; this we know, that the true substance of the cause summarily is this, that it consisteth principally upon the construction of two acts of parliament, the one of the twenty-fifth year of King Edward the Third, and the other of the twenty-fifth year of King Henry the Eighth, whereof your Majesty’s Judges, upon their oaths, and according to their best knowledge and learning, are bound to deli-

ver their true understanding faithfully and uprightly ; and the case being between two for private interest, and inheritance earnestly called on for justice and expedition.

“ We hold it, therefore, our duty to inform your Majesty, that our oath is in these express words : that, in case any letter came unto us, contrary to law, that we do nothing by such letters, but certify your Majesty thereof, and go forth to do the law, notwithstanding the same letters.

“ We have advisedly considered of the said letter of Mr. Attorney, and, with one consent, do hold the same to be contrary to law, and such as we could not yield to by our oaths, assuredly persuading ourselves that your Majesty being truly informed that it standeth not with your royal and just pleasure to give way to them.

“ And therefore knowing your Majesty’s zeal to justice to be most renowned, therefore we have, according to our oaths and duties at the very day prefixed, the last Term, proceeded and thereof certified your Majesty, and shall ever pray to the Almighty for your Majesty, in all honour, health, and happiness, long to reign over us.\*”

To this firm and temperate address, signed by

\* Act of Council, Bacon’s Works, vol. 5, p. 424.

Edward Coke, Henry Hobart, Laurence Tanfield, and the nine Puisne Judges, the King replied by a letter, in which he told them that the reason they assigned with regard to their oaths were very weak, and again desired them not to proceed in the cause until his return to London.

When, soon afterwards, the King came to town, the judges were summoned to his presence, before the council table at Whitehall, June 6, 1616, where his Majesty, like a true Stuart, entered at some length into the matters contained in the judges' letter, declared that he approved neither of its matter nor manner of expression; condemned them for their remissness in suffering counsellors at the bar to deal in impertinent discussions about his prerogative, and told them they ought to have checked such sallies, nor suffered such insolence upon the crown. With regard to their own business, he thought fit to acquaint them, that deferring their discussions and hearings upon necessary reasons, neither delayed nor denied justice: it was rather a pause of necessary prudence, "as it was always proper and adviseable to consult the King when the crown is concerned;" and farther, he told them that it was wide of the case to say, that it was a point of private contest between subject and subject; for the Bishop, who was defendant,

pleaded for a commendam only in virtue of the royal prerogative. Finally, the King asserted that neither of the parties required expedition, and told these learned and reverend judges, that their letter to him was "couched indecently, and failed in the form."

Upon this, they all kneeled, confessed themselves in error, and solicited pardon. But with regard to the facts of the case, Coke manfully stood his ground on behalf of his brethren, contending that his Majesty's command for staying the proceedings was a delay of justice, against the law, and contrary to their oaths; moreover, that as they intended to manage the proceedings, the King's prerogative would not have been concerned.

The King told them, in reply, that for judges of the law to pronounce whether his prerogative was concerned or not, was very preposterous management; and his Majesty then required Lord Ellesmere, the Chancellor, to declare whether he, that is, the King, or the judges best understood the law, and the oath of a judge.

Ellesmere had no anxiety to set his opinion above that of the common law judges; he therefore referred the matter to the King's Counsel.

The Attorney-General, the great Bacon, had no such diffidence to deter him in this case; he

declared boldly for the King's view of the question, and demanded of the judges "whether this refusal of theirs to make a stay, was not nearer to a breach of their oaths?" for they were sworn to counsel the King; therefore, not to give him counsel until the business was over, was in effect not to give it at all.

Coke knew that no counsel was justified in holding this language to any judge of the courts of Westminster; he knew that the privy council had no jurisdiction to stay any proceeding in the court of King's Bench, and he therefore told Bacon, that he had far exceeded his authority, for it is the duty of counsel to plead before the judges, and not against them.

Bacon replied with equal energy; he told the judges that the King's council were obliged by their oaths, and by their offices, to plead, not only against the greatest subjects, but against any body of subjects, were they courts, judges, or even the commons assembled in parliament, and moreover, he considered, that by making this challenge, the judges had highly outraged their character. Bacon then appealed to the King, with whom Coke declined to contend.

The Chancellor having decided that the King was right, the council then put the following questions to the judges:

“ In a case were the King believed his prerogative or interest concerned, and requires the judges to attend him for their advice, whether in such a case they ought not to stay proceedings till his Majesty had consulted them?” All the judges immediately said, “ Yes,” except Coke, who told the council, “ when the case happened, he should do that which should be fit for a judge to do.”\*

There can be but one opinion of the single-handed courage of Coke in this transaction, or of the iniquity of this examination. It was equally disgraceful to Bacon, and to the pedant his master ; for Bacon knew better things, and should have scorned to lend himself to so disgraceful an attack upon the judges of the land.

Bacon knew that every judge, by his oath, promised to “ deny no man common right,”† their very commissions directing them to do justice according to the laws and customs of England. He knew, too, that several judges before his time had been fined for acting against the law, even when supported by a warrant from the King. The King’s prerogative, therefore, could not justify a judge for delaying justice, when

\* Bacon’s Works, vol. 5, p. 433.

† 18 Edward III, s. 4.

the King's express warrant could not. The judges were illegally summoned before the King, sitting in his own cause ; for at worst, theirs was but an error in judgment, a failure for which they could not be punished,\* even if they had declared the King's prerogative void, or an act of parliament against law. Coke had seven years previously, in Dr. Bonham's case, declared that they had the power,† and many years afterwards the great Lord Holt applauded him for his decision.‡ A judge is not, even in the most extreme case, accountable in matters of which he has jurisdiction, for any mistakes or errors of judgment.§

Unfortunately for the independence of the judges of those days, they held their places at the pleasure of the crown. They had to please not only the King, but the King's favourites ; and it was not until the passing of the act of the first year of the reign of George the Third, that they were rendered, by that King's noble recommendation, for ever independent of the frowns of the court. By its enactments, they now hold their places for life, and can only be removed

\* Plowden, 13, A. 9. Coke 68. Carter 19.

† Reports, vol. 8. p. 118. ‡ 12 Modern Reports, p. 987.

§ 1 Salkeld, 397.